

HOUSE No. 470

The Commonwealth of Massachusetts

PRESENTED BY:

Jeffrey Rosario Turco

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to stores offering digital coupons.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>1/8/2025</i>
<i>Hadley Luddy</i>	<i>4th Barnstable</i>	<i>1/15/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>12/18/2025</i>

HOUSE No. 470

By Representative Turco of Winthrop, a petition (accompanied by bill, House, No. 470) of Jeffrey Rosario Turco and Hadley Luddy relative to stores offering digital coupons. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to stores offering digital coupons.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 94 of the General Laws is hereby amended by adding the following section:-

2 Section 330. (a) For the purposes of this section, the following words shall, unless the
3 context clearly requires otherwise, have the following meanings:

4 “Digital coupon”, a store coupon, rebate or similar instrument that is offered to a
5 consumer through the internet or any other electronic method.

6 “Store”, any grocery store, supermarket or warehouse club, as defined in section 184B,
7 whose primary business is selling either food for consumption off the seller’s premises alone or
8 in combination with grocery items or other nondurable items typically found in a supermarket,
9 and such items are sold at least in part to individuals own personal, family or household use.

10 “Store card”, a card, loyalty card, membership card or other device issued by a store and
11 used by a consumer that confers certain benefits to cardholders including, but not limited to,

12 discount prices upon presentation of the card. Application for a store card shall be made
13 available to consumers either digitally or in person at the store.

14 (b) Any store offering digital coupons for sale goods at retail shall make available to a
15 consumer a paper coupon of identical value.

16 (c) Any store offering digital coupons for sale goods at retail shall be required to apply
17 said digital coupons to the purchases of any buyer 65 years old or older upon the presentation of
18 a government issued photo identification.

19 (d) Upon presenting a store card, a consumer may ask a store cashier or a customer
20 service representative if the store offers digital coupons. If the stores does offer digital coupons,
21 the store shall apply all available digital coupons to the consumer's purchase.

22 (e) A store that violates this section shall be subject to a civil penalty of up to \$2,500
23 for a 1st offense and up to \$5,000 for any subsequent offense.

24 (f) The office of the attorney general shall establish rules and regulations that are
25 necessary to implement this section.